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Texas Board of Legal Specialization

June 2, 2026

Via Facsimile: (833) 958-1221

Acuity, A Mutual Insurance Company

ATTN: David B.

P.O. Box 58

Sheboygan, WI 53082

CONFIDENTIAL SETTLEMENT DEMAND PURSUANT TO TEX. R. EV.ID.408

Re: Your insured: Concrete Bodin
Our Client: Yudan Huang
Claim No: TD0976
Date of Loss: 11/6/2025

Dear David B.:

I am writing this letter on behalf of my client, Yudan Huang, for the injuries and damage she suffered as the result of a motor vehicle collision which occurred on November 6, 2025. We hereby send a demand for policy limits pursuant to the Stowers' Doctrine, such offer remaining open until **July 2, 2026.**

Liability is clear and undisputed. Ms. Huang was operating her vehicle when your insured's driver, operating a Concrete Bodin Mack truck, rear-ended Ms. Huang's vehicle. **The investigating officer determined the driver failed to control speed and maintain a proper lookout, and rear-ended Ms. Huang.**

On November 7, 2025, Ms. Huang went to Plano Supreme Primary Care and was evaluated following this crash. After doing x-rays, she was referred for further treatment. She was treated for neck pain, headaches, and back pain and discharged with follow-up instructions.

On November 17, 2025, Ms. Huang began treatment with Momentum Spine & Joint due to persistent neck and back pain. She was examined and was referred to physical therapy, prescribed medication for pain, ordered MRIs, and scheduled for follow up visits.

The Cervical MRI revealed:

1. At C5-C6, there is a Grade 1 retrolisthesis with a 2.2 mm disc herniation pressing on the front of the spinal sac.

The Lumbar MRI revealed:

1. At L3-4, there is a 1.5 mm disc herniation pressing on the spinal sac.
2. At L4-5, there is a 2.2 mm disc herniation pressing on the spinal sac and lifting a ligament.

Ms. Huang attended physical therapy at ATI Physical Therapy. From November 26, 2025 to February 27, 2026.

Current Medical Bills:

Plano Supreme Primary Care	\$393.00
Momentum Spine & Joint	\$2,273.10
MRI Centers of Texas	\$5,188.00
Uptown Radiology Associates	\$1,190.00
ASP Cares Pharmacy	\$498.00
ATI Physical Therapy	\$16,016.48
TOTAL BILLS PAID & OUTSTANDING:	\$25,558.58

Future Medical Expenses:

Cervical Medial Branch Block — Bilateral C4-C5 / C5-C6	\$16,146.50
Cervical Radiofrequency Thermal Coagulation — Bilateral C4-C5/C5-C6	\$35,176.50
Lumbar Medial Branch Block — Bilateral L4-L5 / L5-S1	\$15,058.00
Lumbar Radiofrequency Thermal Coagulation — Bilateral L4-L5/L5-S1	\$34,592.50
TOTAL FUTURE MEDICAL EXPENSES:	\$100,973.50

Despite ongoing and appropriate medical care, **Ms. Huang continues to suffer persistent and debilitating pain in her neck and back**, which has significantly interfered with her ability to function normally in her daily life. Her injuries substantially limit her ability to **sit or stand for prolonged periods** without sharp pains in her neck and back. Even driving makes her neck and back hurt. **Ms. Huang is in constant pain due to these injuries caused by your insured, Concrete Bodin.**

Beyond the physical effects, this collision has caused **substantial emotional and psychological distress**. Ms. Huang now experiences **heightened anxiety and stress when traveling in a vehicle**,

particularly when riding in or driving near other traffic. This anxiety is directly related to the trauma of the collision and further diminishes her quality of life.

It is **reasonably foreseeable** that Ms. Huang will continue to endure significant pain, functional limitations, and emotional hardship. Her future medical needs and non-economic damages will be substantial.

STOWER'S DEMAND

To be clear, the intent of this offer is to place Acuity, A Mutual Insurance Company in a *Stowers* situation as that term is commonly known within the insurance and litigation industry. Your insured should be made aware of the following:

1. TEXAS RECOGNIZES A CAUSE OF ACTION ON THE PART OF AN INSURED AGAINST THE INSURED'S LIABILITY INSURANCE CARRIER (in this case Acuity, A Mutual Insurance Company) IF THE INSURED IS DAMAGED BECAUSE OF THE CARRIER'S NEGLIGENCE IN REFUSING SETTLE Claims AGAINST THE INSURED WITHIN POLICY LIMITS. *G.A. Stowers Furniture Co. v. American Indemnity Co.*, 15 S.W.2d 544, 547 (Tex. Comm'n App. 1929, holding approved).
2. The *Stowers* duty shifts the risk of an excess judgment (i.e., a judgment for more than the policy limits) from the insured to the insurer (i.e., and Acuity, A Mutual Insurance Company).
3. An insured suffers an injury for *Stowers'* purposes if an excess judgment is awarded in this litigation.
4. If Acuity, A Mutual Insurance Company fail to settle with the Plaintiff (i.e., if Acuity, A Mutual Insurance Company fails to accept the demand stated in this letter), and if an excess judgment is awarded, Plaintiff may be entitled to recovery of actual damages, exemplary damages, interest, court costs, and attorney fees against Acuity, A Mutual Insurance Company.
5. Whether the insurer acted in "good faith" in deciding whether to accept or reject a demand such as the one stated in this letter is of no consequence to *Stowers* liability. The only consideration for *Stowers* liability is whether the insurer accepted a reasonable settlement offer within policy limits. Otherwise, the insurer will risk liability for an excess judgment against the insured.

6. Again, the insured, Concrete Bodin, is being given a chance to protect their financial assets. If insured should demand that Acuity, A Mutual Insurance Company settle for our offer, and Acuity, A Mutual Insurance Company refuses to do so, then the insured, Concrete Bodin, will be able to shift the risk of any excess judgment to the insurance company. Thus, by the insured Concrete Bodin, demanding their insurance company immediately settle for the offer made herein, the insured, Concrete Bodin can ensure that the insurance company will be responsible for paying any excess judgment. By making this offer, my client has given the insured, Concrete Bodin, an opportunity to protect their individual assets. To protect these assets, they need only demand that the insurance company settle for our policy limits offer stated herein. Thereafter, any failure on the part of Acuity, A Mutual Insurance Company to do so would clearly be unreasonable given the gravity of the liability and damage facts stated above.

Again, I trust that the insured, Concrete Bodin, will be explained the dangers of this case and the role they can play in protecting their personal assets from excess judgment. Certainly, insured would probably be best served by Acuity, A Mutual Insurance Company forwarding this letter directly to them for review with a recommendation that they seek the advice of an attorney of their own choosing.

In exchange for the payment of the policy limit held by insured, Concrete Bodin, Plaintiff will agree to provide an executed full and final release of all claims against the insured, Concrete Bodin, arising out of the incident which is the basis of this claim.

If there is anything you feel you need to finalize your evaluation, please let me know immediately. We can certainly accommodate any reasonable request for information within the time in which you have to respond to this offer.

This demand expires at **5:00 p.m. (CST) July 2, 2026.**

Yours very truly,

JANICEK LAW FIRM, P.C.

/s/ Jacy Pawelek

Jacy Pawelek

JP/cm